

appeared on April 20, 2026 and June 1, 2026 for hearing on prior Motions for Attorney's Fees that were denied without prejudice for being untimely filed. Other than motions seeking attorney's fees, Respondent has only filed the CH-120 and CH-800. Based on the evidence before the Court, the Court finds that \$2,000 is a reasonable sum for attorney's fees in this matter. This is comprised of five hours of attorney time at the rate of \$400 per hour. The Court declines to award any paralegal time as sufficient evidence has not been provided.

The motion is **GRANTED** and fees will be awarded to Respondent in the amount of \$2,000. Respondent did not provide a proposed Order as required by Local Rule of Court 5.17(D). Respondent is ordered to submit a proposed order consistent with the Court's ruling here.

SPITSEN, ET AL. VS. NOR CAL OIL INC.

CASE NUMBER: 26CV-0210376

Tentative Ruling on Motion for Preference: Plaintiffs Roger Spitsen and Annette Spitsen move for preference pursuant to CCP § 36(a). Despite being properly noticed, Defendant Nor Cal Oil, Inc. did not oppose the motion.

(a) A party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings:

(1) The party has a substantial interest in the action as a whole.

(2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation.

(b) A civil action to recover damages for wrongful death or personal injury shall be entitled to preference upon the motion of any party to the action who is under 14 years of age unless the court finds that the party does not have a substantial interest in the case as a whole. A civil action subject to subdivision (a) shall be given preference over a case subject to this subdivision.

(c) Unless the court otherwise orders:

(1) A party may file and serve a motion for preference supported by a declaration of the moving party that all essential parties have been served with process or have appeared.

(2) At any time during the pendency of the action, a party who reaches 70 years of age may file and serve a motion for preference.

(d) In its discretion, the court may also grant a motion for preference that is accompanied by clear and convincing medical documentation that concludes that one of the parties suffers from an illness or condition raising substantial medical doubt of survival of that party beyond six months, and that satisfies the court that the interests of justice will be served by granting the preference.

(e) Notwithstanding any other provision of law, the court may in its discretion grant a motion for preference that is supported by a showing that satisfies the court that the interests of justice will be served by granting this preference.

(f) Upon the granting of such a motion for preference, the court shall set the matter for trial not more than 120 days from that date and there shall be no continuance beyond 120 days from the granting of the motion for preference except for physical disability of a party or a party's attorney, or upon a showing of good cause stated in the record. Any continuance shall be for no more than 15 days and no more than one continuance for physical disability may be granted to any party.

(g) Upon the granting of a motion for preference pursuant to subdivision (b), a party in an action based upon a health provider's alleged professional negligence, as defined in Section 364, shall receive a trial date not sooner than six months and not later than nine months from the date that the motion is granted.

CCP § 36.

The Complaint in this matter was filed on April 14, 2026 and named only one Defendant other than Does. Proof

of Service of Summons was filed on May 29, 2026 indicating that Defendant Nor Cal Oil, Inc. was served on May 18, 2026. The Motion for Preference was filed on June 30, 2026. Defendant filed an Answer on June 18, 2026. CCP § 36(c)(1), which allows a party to file the motion after all essential parties have been served, has been satisfied.

Plaintiff Roger Spitsen turned eighty last month. Plaintiff Roger Spitsen has a substantial interest as he the one alleged to have suffered physical injury during a fall at a business owned by Defendant. Plaintiff has presented evidence that his current health conditions are such that a preference is necessary to prevent prejudicing the party's interest in the litigation.. No evidence has been submitted to the contrary and Defendant did not oppose the motion. Plaintiff therefore meets the requirements of mandatory preference pursuant to CCP § 36(a).

The motion is **GRANTED**. Tuesday November 3, 2026 is the 120th day. The Court intends to set the matter for trial no later than October 20, 2026. The Court will also vacate the presently set Mandatory Settlement Conference and set a Mandatory Settlement Conference approximately 4-6 weeks prior to the newly selected trial date. All trial related deadlines will be based on the new trial date. Plaintiffs provided a proposed Order that that will be modified to reflect the Court's ruling.

WYNHOFF VS. CITY OF REDDING

CASE NUMBER: 24CV-0204924

Tentative Ruling on Motion to Compel Independent Medical Examination: Defendant City of Redding moves for an order compelling Plaintiff September Wynhoff to sit for an Independent Medical Examination ("IME"). There is no dispute that an IME is warranted. However, the parties disagree on the parameters for the IME. Plaintiff specifically seeks the following limitations:

1. The examination shall be limited to matters reasonably necessary for diagnosis, evaluation, causation, and prognosis.
2. The examiner shall not inquire into liability issues for the purpose of obtaining additional factual testimony regarding disputed employment events.
3. The examination shall be video recorded in its entirety except during portions involving proprietary testing materials.
4. Plaintiff shall receive all reports, notes, scoring summaries, and non-proprietary materials generated by the examination.
5. To the extent proprietary testing data cannot be released directly to counsel, such data shall be made available to a qualified expert retained by Plaintiff.
6. The examination shall not exceed the duration reasonably necessary to complete the evaluation.

Based on the Opposition, it appears that item 3 should have read that the IME should be audio recorded. It appears that both parties are in agreement regarding no video. It also appears that the parties are in agreement as to item 4 and item 5. The time that Defendant asserts the exam will take is reasonable so item 6 is also not an issue.

The dispute appears to be mostly with items 1 and 2. Plaintiff seeks to prevent the examiner from eliciting information that was already provided in Plaintiff's previous depositions. In considering the facts presented in this case from those in *Golfland Entertainment Centers, Inc. v. Superior Court* (2003) 108 Cal. App. 4th 739, the Court finds that the facts and circumstances are drastically different. This case involves an adult and what is alleged to be a continuing course of conduct, rather than a child being injured in an isolated incident as in *Golfland*. Dr. Bahar Safei-Far has provided evidence of why questioning about the underlying facts is necessary to the IME process. As worded, items 1 and 2 are proper limitations. However, this should not be construed to limit the examiner from asking about facts already covered to the extent the examiner deems necessary.